

Jitendra Sharma (Minor) v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 27 May 2013 · WRIT - C No. - 30161 of 2013 · **Writ disposed; cl. 6.5 representation on payment facility to be decided in three weeks.**

HEADNOTE

Where the consumer did not dispute assessment-bill liability and sought only time to pay, the Division Bench treated clause 6.5 of the Electricity Supply Code, 2005 as permitting the competent authority to grant facility in payment after considering financial stress, and disposed of the writ by relegating the petitioner to a fresh representation to be decided preferably within three weeks.

FACTUAL SUMMARY

Jitendra Sharma, a minor, approached the Allahabad High Court against the State of Uttar Pradesh and the power corporation in respect of an assessment bill. He did not dispute the liability and was ready to pay the entire amount within the time required, seeking only a facility in payment on the ground of financial hardship. The State and the power corporation were represented. The petition was taken up on 27 May 2013 and disposed of the same day.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

facility-in-payment-of-assessment-bill

HOLDING

Clause 6.5 of the Electricity Supply Code, 2005 permits the competent authority to grant facility in payment of an assessment bill, considering the consumer's financial stress and other aspects placed before it. Liability not being disputed, the writ court did not examine the bill on merits and disposed of the petition by permitting a fresh representation, with a certified copy of the order, to be decided preferably within three weeks. ¶ 3-4

FLAG ambiguous: court treated cl. 6.5 as payment-facility/financial-stress power

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER PAYMENT FACILITY SHOULD BE GRANTED ON THE ASSESSMENT BILL

Left to the competent authority on a fresh representation stating financial hardship. ¶ 4